

TENTATIVE RULING:

Plaintiff Discover Bank (“Plaintiff”) filed a Motion to Enter Judgment on September 24, 2025 (“Motion to Enter Stipulated Judgment after Default”). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 2, 2025.

Background

The parties entered into that certain settlement agreement filed on January 26, 2024 (the “Settlement Agreement”), the terms of which included payment by the defendant Josiah Ramirez (“Defendant”) in the amount of \$11,303.03, to be paid in accordance with the terms thereof (the “Payment Terms and Conditions”). See Declaration of Plaintiff’s Counsel filed September 24, 2025 (“Supporting Declaration”), ¶4 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the amount of \$16,078.28 plus costs in event of a default. *Id.*, **Exhibit A**, ¶¶2-3 and 6.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶7. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶6.

After credit for amounts paid, there remains \$12,310.68 due and owing, plus costs of \$505.70. See Supporting Declaration, ¶7.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$12,310.68, plus costs of \$505.70, for a total judgment of \$12,816.38.
4. Plaintiff to submit revised forms of order and money judgment which appropriately designate plaintiff’s current legal name (e.g. “Capital One, N.A., successor by merger to Discover Bank”). If no order for leave to amend plaintiff’s name has been previously been entered, leave is hereby granted and the operative complaint deemed so amended. The proposed order shall recite such amendment. The Court takes judicial notice of the “NOTICE OF PLAINTIFF MERGER” filed in multiple pending cases before the Court regarding the merger.

CASE NAME: WELLS FARGO BANK, N.A. VS. CANDIS SPENCER

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: DONALD L. COX**

FILED BY: SPENCER, CANDIS

TENTATIVE RULING:

Donald L. Cox (“Counsel”) filed a Motion to be Relieved as Counsel on September 8, 2025 (the “Motion to be Relieved as Counsel”). The matter was set for hearing on December 2, 2025.

Background

Counsel seeks to be relieved as attorneys for defendant Candis Spencer (“Defendant”).

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship due to “[i]rreconcilable differences,” lack of communication and non-payment of fees. See Declaration filed September 8, 2025, ¶2 and Attachment 2. Defendant has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court shall issue the order after hearing.

6. 9:00 AM CASE NUMBER: L24-05801

CASE NAME: PORTFOLIO RECOVERY ASSOCIATES, LLC VS. YAMESE PARKERSMITH

***HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT UNDER STIP FILED BY PLNTF ON 8/7/25**

FILED BY:

TENTATIVE RULING:

Plaintiff Portfolio Recovery Associates, LLC (“Plaintiff”) filed a Motion to Enter Judgment under Terms of Stipulated Settlement on August 7, 2025 (“Motion to Enter Stipulated Judgment after Default”). The Motion to Enter Stipulated Judgment after Default was set for hearing on October 28, 2025.

Plaintiff appeared and confirmed that notice of the hearing date had not been given to Defendant and, therefore, the Court continued the matter to December 2, 2025, 9:00 a.m. in Department 34 of the Court to ensure that notice has properly been given to the Defendant. **Plaintiff was ordered to give notice to Defendant of this continued hearing date on the pending motion. See Order entered November 10, 2025.**